

(Name of court)

**Form 34G.1: Affidavit of Society
Employee for Adoption of a Child
in Extended Society Care,
sworn/affirmed**

at

Court office address

Applicant(s) (The first letter of the applicant's surname may be used)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Respondent(s) (If there is a respondent, the first letter of the respondent's surname may be used)

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

My name is (full legal name)

I live in (municipality & province)

and I swear/affirm that the following is true:

1. The name of the child being placed for adoption is: (Give full legal name, date of birth, sex and birth registration number if known of person to be adopted. You may use an initial for the surname.)

Full legal name

Date of birth

Sex

Birth registration number

2. I am an employee of (full legal name of children's aid society)

authorized to place the child for adoption.

3. The child was placed in extended society care by order of Justice (name of judge)

on (date) . A copy of the extended society care order and proof of service of the order are attached to this affidavit.

4. I have made reasonable inquiries about the existence of any outstanding orders of access to the child. To the best of my knowledge,

☐ there is no outstanding order.

☐ A copy of the order ending access to the child made under s. 104 of the *Child, Youth and Family Services Act, 2017* made by

Justice (name of judge) on (date of order)

and proof of service of the order are attached to this affidavit.

- ☐ A copy of the order for access to the child made under s. 104 of the *Child, Youth and Family Services Act, 2017* made by Justice (name of judge) _____ on (date of order) _____ is attached to this affidavit.
- ☐ On (date) _____, (name of children's aid society) _____ gave notice to (name(s) of person(s) entitled to notice) _____ that the child would be placed for adoption as described in the affidavit(s) of service of (name(s) of person(s) who served notice) _____ sworn/affirmed on (date(s)) _____ affidavit(s) of service sworn or affirmed) _____.
- ☐ This service was in accordance with the requirements in s. 195(4) of the *Child, Youth and Family Services Act, 2017*.
- ☐ This service was in accordance with the order of Justice (name of judge) _____ pursuant to s. 195(5) of the *Child, Youth and Family Services Act, 2017*.
- ☐ Justice (name of judge) _____ made an order on (date of order) _____ dispensing with service of notice on (name(s) of person(s) entitled to access to or contact with the child who was(were) not served) _____ pursuant to s. 195(6) of the *Child, Youth and Family Services Act, 2017*.
- ☐ The child is a First Nations, Inuk, or Métis person and on (date) _____, (name of children's aid society) _____ gave notice to (name(s) of person(s) entitled to notice) _____ that the child would be placed for adoption as described in the affidavit(s) of service of (name(s) of person(s) who served notice) _____ sworn/affirmed on (date(s)) _____ affidavit(s) of service sworn or affirmed) _____.
- ☐ This service was in accordance with the requirements in s. 197(4)(a) of the *Child, Youth and Family Services Act, 2017*.
- ☐ This service was in accordance with the order of Justice (name of judge) _____ pursuant to s. 197(4)(b) of the *Child, Youth and Family Services Act, 2017*.
- ☐ Justice (name of judge) _____ made an order on (date of order) _____ dispensing with service of notice on (name(s) of person(s) entitled to notice and who was/were not served) _____ pursuant to s. 197(4)(b) of the *Child, Youth and Family Services Act, 2017*.
- ☐ No application for an openness order was filed with respect to this child and the access order of Justice (name of judge) _____, dated (date of order) _____, was terminated upon the placement of the child for adoption on (date child placed for adoption) _____.

- ☐ An openness application was filed by *(name of person(s) seeking an openness order)*

..... and the following order was made:

(Give the name of the court, date of order, name of judge, court file number, full legal name(s) of the person(s) permitted to communicate or have a relationship with the child under the order and details of the order.)

- ☐ An openness application was filed by *(name of person(s) seeking an openness order)*

..... and has not yet been concluded.

The status of that application is as follows: *(Provide details of the order requested, position of other parties and any court dates that have been scheduled.)*

5. ☐ I have made reasonable inquiries about the existence of any outstanding appeals of orders relating to the child. To the best of my knowledge,

- ☐ There is no appeal in progress of the order(s) for extended society care or ending access to the child.
- ☐ The appeal period for the order(s) for extended society care and ending access to the child have expired without an appeal being filed.
- ☐ An appeal of the order for extended society care was filed on *(date)*, and was withdrawn on *(date)*
- ☐ An appeal of the order for extended society care was filed and dismissed by *(name of judge or registrar of the Court of Appeal)* on *(date of order)*
- ☐ An appeal of the order ending access was filed on *(date)*, and was withdrawn on *(date)*
- ☐ An appeal of the order ending access was filed and dismissed by *(name of judge or registrar of the Court of Appeal)* on *(date of order)*

Sworn/Affirmed before me at
.....
in
.....
on
date
Commissioner for taking affidavits
(Type or print name below if signature is illegible.)

Signature

(This form is to be signed in front of a lawyer, justice of the peace, notary public or commissioner for taking affidavits.)